

power, and was no authority in support of the view that the power could not be exercised in favour of infants; and Lindley, L. J., laid down the following rules as the result of his examination of the authorities (c):—

“1. That powers to appoint portions charged on land ought, if their language is doubtful, to be construed so as not to authorise appointments vesting those portions in the appointees before they want them—that is, before they attain twenty-one, or (if daughters) marry.

2. That where the language of the power is clear and unambiguous, effect must be given to it.

3. That where upon the true construction of the power and the appointment the portion has not vested in the lifetime of the appointee, the portion is not raisable, but sinks into the inheritance.

4. That where upon the true construction of both instruments the portion has vested in the appointee, the portion is raisable, even although the appointee dies under twenty-one, or (if a daughter) unmarried.

5. That appointments vesting portions charged on land in children of tender years, who die soon afterwards, are looked at with suspicion; and very little additional evidence of improper motive or object will induce the Court to set aside the appointment or treat it as invalid, but that without some additional evidence the Court cannot do so.”]

Fourthly. Of Ademption and Satisfaction.—The question who are portionists involves the doctrine of Ademption and Satisfaction, and we propose briefly to state the leading principles.

[*401] * 1. **Ademption and satisfaction.**—The nature of Ademption and Satisfaction may be best illustrated by instances. A father by his will bequeaths 1,000*l.* to a daughter, and after the date of the will he settles 1,000*l.* upon the same daughter upon the occasion of her marriage, and dies without having altered his will. Here the father, owing a debt of nature to his daughter (a), had originally

[(c) 21 Ch. D. 359.]

(a) See *Watson v. Earl of Lincoln*, Amb. 326; *Pym v. Lockyer*, 5 M. &

Cr. 34; *Powell v. Cleaver*, 2 B. C. C. 516; *Cooper v. Cooper*, 8 L. R. Ch. App. 813.